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Attorneys for Plaintiff

Electronically FILED by
Superior Court of California,
County of Los Angeles
5/03/2024 9:31 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By H. Martinez, Deputy Clerk

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES
CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT**

MIDLAND CREDIT MANAGEMENT, INC.

Plaintiff,

vs.

JOSE ZELAYA;

Defendant.

Case No. 24CHLC00955

**DECLARATION RE:
CODE OF CIVIL PROCEDURE § 1033;
INTEREST; AND
EVIDENCE CODE § 1550**

I, the undersigned, declare and state as follows:

1. I am the attorney of record for plaintiff MIDLAND CREDIT MANAGEMENT, INC. ("Plaintiff") in the above entitled action. To the extent that Plaintiff acts in its capacity as successor in interest to the original creditor or its assigns, references herein to Plaintiff may include Plaintiff's predecessor in interest. If called to testify, I could and would competently testify as to all the facts stated in this declaration, except as to those matters testified to upon information and belief, and as to those matters, I believe them to be true.

2. I am an attorney and an employee of Midland Credit Management, Inc. ("MCM"), the servicer of Plaintiff's account. I have access to and have reviewed the electronic records pertaining to the account and am authorized to make this affidavit on Plaintiff's behalf. The electronic records reviewed consist of data acquired from the seller when Plaintiff purchased the account, together with records generated in connection with servicing the account since the day the account was purchased by Plaintiff. In addition, I reviewed the documents that are attached to this affidavit.

1 3. Plaintiff is precluded from filing this case in Small Claims Court per Code of Civil
2 Procedure § 116.420(a).

3 4. The complaint seeks to recover amounts owed by Defendant JOSE ZELAYA
4 ("Defendant"). The underlying account that is the basis of the instant lawsuit is a credit account that
5 Defendant held with creditor COMENITY CAPITAL BANK, account number: XXXXXXXXXXXXXX-
6 9338 (the "Account").

7 5. Prior to filing this complaint, all right, title and interest to the Account was sold and
8 assigned to Plaintiff. Plaintiff owns the Account and stands in the place of the original creditor and is
9 entitled to collect on the Account as if it were the original creditor. Additionally, as owner of the
10 Account, Plaintiff can testify to ownership of the Account and the fact that the debt remains unpaid by
11 Defendant.

12 6. Upon my review of the Plaintiff's records as they pertain to Defendant's account, there
13 were previous transactions between the original creditor and Defendant. Defendant agreed to repay the
14 amount due to the original creditor, and there was a valid assignment of the account from the original
15 creditor to Plaintiff. By using the Account, Defendant expressly agreed or impliedly promised to repay
16 Plaintiff.

17 7. Prior to the commencement of this action, as part of our usual course of business, and
18 pursuant to Code of Civil Procedure § 1033(b)(2), Defendant was notified in writing of the intended legal
19 action and that any judgment entered against the Defendant would include attorney's fees and collections
20 costs. A true and correct copy of the letter sent to Defendant is attached hereto as "Exhibit A".

21 8. When Defendant failed to pay the balance due, Plaintiff filed and served the Complaint in
22 this action. Defendant was served with the complaint on January 20, 2024. A proof of service was filed
23 with the court.

24 9. Upon my review of the Plaintiff's records as they pertain to this case, I further certify
25 that no papers or any responsive pleadings have been served on and received by Plaintiff by the
26 party(s) in default, therefore the allegations of the complaint are deemed admitted by law.

27 10. Plaintiff seeks entry of Defendant's default and judgment as set forth in the Request for
28 Entry of Default Judgment, Judicial Council for 982 (a)(6) filed with this Declaration.

11. Filed as part of this default judgment packet is an affidavit pursuant to Code of Civil Procedure section 585. The affidavit and its attached exhibits establish the account and the obligation.

COSTS AND FEES

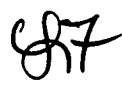
12. Pursuant to Code of Civil Procedure § 1033(b)(2), Plaintiff is entitled to recover the actual costs of a filing fee and the actual costs of service of process.

13. It is the normal business and procedure of Plaintiff to microfilm, image or store as electronic media all documents provided by Plaintiff's predecessor-in-interest. The records are microfilmed, imaged or stored as electronic media to facilitate storage and are maintained as part of Plaintiff's regular business practice and procedure. Therefore, Plaintiff requests that all copies of documents produced as part of this default judgment packet, including any affidavits and any documents attached thereto, be accepted in lieu of the original pursuant to Evidence Code § 1550.

I declare under penalty of perjury under the laws of California that the foregoing is true and correct.

Date February 23, 2024

MIDLAND CREDIT MANAGEMENT, INC.

By: 

- ☐ ROBERT K. HANNA
- ☐ JUNQIAO XIAO
- ☐ HYU JIN JULIA JUNG
- ☐ MICHAEL D. KAHN
- ☒ LAMONT FREEMAN

EXHIBIT A

MIDLAND CREDIT MANAGEMENT
LEGAL COLLECTIONS DEPARTMENT

MidlandCredit.com
(877)-898-5001

Jose Zelaya

P1 T13 1615 W Court St Apt 6
001 Los Angeles, CA 90026-5527



12/22/2023

REF: COMENITY CAPITAL BANK

Original Account Number: XXXXXXXXXXXXX9338

Dear Jose Zelaya,

As attorneys with Midland Credit Management, Inc. legal department, we are contacting you regarding the collection of the above balance. Your COMENITY CAPITAL BANK Account, owned by Midland Credit Management, Inc., has now been transferred to our legal collections department due to non-payment. We are currently reviewing documentation (including the attached documents) in preparation for filing a lawsuit against you.

Demand is hereby made upon you for the above payment IN FULL—this is the amount due on your original obligation when transferred to our department. Please send payment **Made Payable to Midland Credit Management, Inc.** by 01/01/2024. You may also make a payment online at MidlandCredit.com.

If we do not receive payment IN FULL by 01/01/2024, we intend to file a lawsuit against you, seeking entry of judgment for your account's outstanding balance as well as any incurred and recoverable court costs. We intend to continue our collection efforts through various post-judgment remedies available under your state's laws if a judgment is obtained against you. If you are unable to pay in full by 01/01/2024 please contact our office at (877)-898-5001 to discuss affordable repayment options.

Your prompt attention is necessary to avoid a lawsuit. Please call (877)-898-5001 no later than 01/01/2024. You may also make a payment online at MidlandCredit.com.

Sincerely,
Attorneys for Midland Credit Management, Inc.

P.S. Attached are copies of some of the documents we received from the original creditor regarding this account.

002710

Visit Us Online

MidlandCredit.com

Call (877)-898-5001

Hours of Operation:

M – Fri: 8:00am – 7:30pm EST

Sat: Closed

Sun: Closed



P.O. Box 2121 Warren, MI 48090

PLEASE SEE REVERSE SIDE FOR IMPORTANT DISCLOSURE INFORMATION

Please tear off and return lower portion with payment in the envelope provided

PAYMENT CERTIFICATE

Internal Legal Account Number: 23-224795
Original Account Number: XXXXXXXXXXXXX9338
Current Balance: \$8,039.35
Amount Enclosed: \$ _____

Jose Zelaya
1615 W Court St Apt 6
Los Angeles, CA 90026-5527

Payment Options:

- 1) Pay by phone: (877)-898-5001
- 2) Mail in this certificate with your payment and make check payable to: Midland Credit Management, Inc.



P.O. Box 2121 Warren, MI 48090



0103730002710
0000 0000

PRE_002

IMPORTANT DISCLOSURE INFORMATION:

Please understand this is a communication from a debt collector. This is an attempt to collect a debt.
Any information obtained will be used for that purpose.

Calls to and/or from this company may be monitored or recorded.

MAIL PAYMENTS TO: P.O. Box 2121 Warren, MI 48090

MAIL CORRESPONDENCE TO: P.O. Box 2121, Warren, MI 48090

We are required under state law to notify consumers of the following additional rights. This list does not contain a complete list of the rights consumers have under applicable law:

IF YOU LIVE IN CALIFORNIA, THIS APPLIES TO YOU:

California Code of Civil Procedure §1033(b)(2) requires us to notify you that in the event of legal proceedings, such legal proceedings could result in a judgment against you that could include court costs and necessary disbursements under applicable law, if Midland Credit Management, Inc. is found to be legally entitled to the same.

California license number pending.

PRE_002

Summary of account activity

Account no.-9338

Previous balance +\$7,880.63

Payments -0.00

Other credits -0.00

Purchases +0.00

Other debits +0.00

Fees charged +40.00

Interest charged +118.72

New balance +\$8,039.36

Past due amount \$1,805.00

Credit limit \$7,450.00

Available credit -\$589.00

Statement closing date 01/25/2023

Days in billing cycle 31

Payment information

New balance \$8,039.35

Minimum payment due \$2,087.00

Payment due date 02/19/2023

Minimum Payment Warning: If you make only the minimum payment for each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay:	You will pay off the balance shown on the statement in about:	And you will end up paying an estimated total of:
Only the minimum payment	21 years	\$27,268
\$403	3 years	\$14,514 (Savings = \$12,754)

For information regarding credit counseling services, call 1-800-284-1706.

YOU HAVE A PROMOTIONAL PLAN THAT HAS EXPIRED. \$995.96 MAY NOW BE ACCRUING INTEREST AT A HIGHER APR. PLEASE REFER TO THE DETAILS OF YOUR PLANS AND INTEREST CHARGE CALCULATION SECTIONS OF THIS STATEMENT FOR ADDITIONAL INFORMATION.

YOU MUST PAY THE BALANCE \$3,284.99 OF YOUR PLAN 18 MONTHS IN FULL BY 05/24/23 TO AVOID PAYING ACCRUED INTEREST CHARGES.

If you returned an item that was on a promotional plan and have questions with how the return was applied to your account, please call us.

Details of your transactions

TRANS DATE	TRANSACTION DESCRIPTION/LOCATION	AMOUNT
01/19/2023	LATE FEE	40.00
TOTAL FEES FOR THIS PERIOD		\$40.00

Interest charged

Interest Charge on Purchases \$118.72

Total Interest For This Period \$118.72

2023 totals year to date

Total fees charged in 2023 \$40.00

Total interest charged in 2023 \$118.72

Interest charge calculation

Your Annual Percentage Rate (APR) is the annual interest rate on your account. See BALANCE COMPUTATION METHOD on page 2 for more details. Minimum interest charge may exceed interest charge below, per your credit card agreement.

TYPE OF BALANCE	APR	BALANCE SUBJECT TO INTEREST RATE	INTEREST CHARGE
Purchases	29.99%	3,688.65 (DA)	93.94

(CONTINUED)

NOTICE: See reverse side for important information.
Please tear at perforation above



☐ Yes, I have moved or updated my e-mail address - see reverse.

Mailed payments must reach us by 6pm ET on 02/19/2023.

\$

Please make check payable to:
COMENITY - IDEAL CARD

Please return this portion along with your payment to:
PO Box 650965
Dallas TX 75265-0965

JOSE ZELAYA
1615 W COURT ST APT 6
LOS ANGELES CA 90026-5527



020700002710
0000 0000

9637043018 0965 9338 000208700 000803935

Keep this portion for your records.

What To Do If You Think You Find A Mistake On Your Statement
If you think there is an error on your statement, write to us at: Comenity Capital Bank, PO Box 182020, Columbus, OH 43218-2020.

In your letter, give us the following information:

- Account information: Your name and account number.
- Dollar amount: The dollar amount of the suspected error.
- Description of Problem: If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake.

You must contact us within 60 days after the error appeared on your statement. You must notify us of any potential errors in writing. You may call us, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question.

While we investigate whether or not there has been an error, the following are true:

- We cannot try to collect the amount in question, or report you as delinquent on that amount.
- The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
- While you do not have to pay the amount in question, you are responsible for the remainder of your balance.
- We can apply any unpaid amount against your credit limit.

Your Rights If You Are Dissatisfied With Your Credit Card Purchase
If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on this purchase.

To use this right, all of the following must be true:

1. The purchase must have been made in your home state or within 100 miles of your current mailing address, and the purchase price must have been more than \$50. (Note: Neither of these is necessary if your purchase was based on an advertisement we mailed to you, or if we own the company that sold you the goods or services.)
2. You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify.
3. You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact us in writing at: Comenity Capital Bank, PO Box 182020, Columbus, OH 43218-2020.

While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay, we may report you as delinquent.

CREDIT REPORTING. We may report information about your account to credit bureaus. Late payments, missed payments, or other defaults on your account may be reflected in your credit report.

NOTICE OF CREDIT REPORT DISPUTES

If you believe information we reported to a consumer reporting agency is inaccurate, notify us at Comenity Capital Bank, PO Box 182120, Columbus, OH 43218-2120. Please provide:

- Your name and account number
- Your address and telephone number
- What information you dispute and why you believe it is inaccurate
- If available, a copy of the section of the credit report showing the information you are disputing

Send all bankruptcy notices and related correspondence to Comenity Capital Bank, Bankruptcy Department, PO Box 183343, Columbus, OH 43218-3343.

PAYMENTS MARKED "PAID IN FULL". All written communications regarding disputed amounts that include any check or other payment instrument marked with "payment in full" or similar language, must be sent to: 3000 Kellway Drive, Suite 120, Carrollton, TX 75006.

DO NOT USE THE ENCLOSED REMITTANCE ENVELOPE.

We may accept payment sent to any other address without losing any of our rights.

HOW TO AVOID PAYING INTEREST. Your due date is at least 25 days after the close of each billing cycle. We will not charge you interest on purchases if you pay your entire balance by the due date each month. We will begin to charge interest on new purchases made under a Low APR, Equal Payment or Budget Payment Credit Plan from the date of purchase.

BALANCE COMPUTATION METHOD. We calculate interest separately for each balance using the method(s) described below. The two letters in parentheses next to the Balance Subject to Interest Rate column in the Interest Charge Calculation section on this statement corresponds to the following:

(DA) We figure the interest charge on this balance by applying the periodic rate to the "daily balance" for each day in the billing period. To get the "daily balance" we take the beginning balance each day, add any new transactions and fees and subtract any payments or credits (treating any net credit balance as a zero balance). This gives us the daily balance.

CUSTOMER SERVICE. Visit COMENITY.NET/ODJEWELRY or call 1-855-408-1662 (TDD/TTY 1-855-619-1918). Send all inquiries to: CUSTOMER SERVICE, PO Box 183003, Columbus, OH 43218-3003.

TELEPHONE MONITORING. To provide you with high-quality service, phone communication with us is monitored and/or recorded.

ADDITIONAL INFORMATION. Abbreviations on your statement mean the following: (v) means variable rate (this rate may vary); WY INT PAY RO means WAIVE INTEREST, PAYMENT REQUIRED; WY INT EQ PY means WAIVE INTEREST, EQUAL PAYMENT; WY INT LOW PMT means WAIVE INTEREST, LOW PAYMENT; DEF INT PY NG means DEFER INTEREST, PAYMENT REQUIRED; DEF INT EQ PY means DEFER INTEREST, EQUAL PAYMENT; DEF INT LOW PMT means DEFER INTEREST, LOW PAYMENT and LOW APR EQ PAY means LOW APR, EQUAL PAYMENT. You may pay all of your Account balance at any time without penalty.

NOTICE ABOUT ELECTRONIC CHECK CONVERSION. When you provide a check as payment, you authorize us either to use information from your check to make a one-time electronic fund transfer from your account or to process the payment as a check transaction.

PAYMENTS. Payments in U.S. dollars received by the applicable due date and cutoff time will be credited as of the date received. Mailed or overnighted payments must also meet the requirements below. Otherwise, a payment may not be credited for up to five days or may be rejected.

Mailing or Overnight (cutoff time 6:00 p.m. Eastern Time (ET)):

- Send a personal check, money order, traveler's check or cashier's check to the name and address on the payment stub (regular mail) or 3000 Kellway Drive, Suite 120, Carrollton, TX 75006 (overnight).
- Include your payment stub, use the return envelope provided with your statement, write your account number on the check and send one payment with one payment stub.
- Do not staple or clip your payment to the stub, send any correspondence with your payment or send cash or gift certificates.

Pay By Phone (cutoff time 6:00 p.m. ET): Call us toll free at 1-855-408-1662 (TDD/TTY 1-855-619-1918).

Online (cutoff time 6:00 p.m. ET): Visit COMENITY.NET/ODJEWELRY.

New Information

Title (optional) _____ First Name _____ MI _____
Last Name _____ Soc. Sec. No. _____
Street Address _____
Apt. No. _____ RR _____ PO Box _____
City _____ State _____ Zip Code _____ Foreign Map Code _____
Home Phone _____ Work Phone _____
Email Address _____

Interest charge calculation - continued

TYPE OF BALANCE	APR	BALANCE SUBJECT TO INTEREST RATE	INTEREST CHARGE
12DS=R 2126201 12 MNTH DF INT PY RQ	29.99%	973.11 (DA)	24.78
18DS=R 2132401 18 MNTH DF INT PY RQ	29.99%	4,682.77 (DA)	0.00

Details of your plans

ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
N/A	N/A	NONE	3,634.46	40.00	0.00	3,768.40	2,087.00	93.94
12DS=R-2126201 This Promotion has ended. You will continue to see these details until the balance is paid in full. The balance is now included in your current balance and minimum payment due.								
ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
\$825.77	09/19/2021	09/20/2022	961.18	0.00	0.00	985.96	0.00	0.00
18DS=R-2132401 You must pay your plan balance of \$3,284.99 in full by 05/24/2023 to avoid paying interest charges at the higher purchase APR noted above.								
ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
\$3,927.99	11/20/2021	05/24/2023	3,284.99	0.00	0.00	3,284.99	0.00	1,458.60

Additional important messages

Consumers are entitled to one free credit report per year. To request yours call 1-877-322-8228 or visit annualcreditreport.com

IMMEDIATE ATTENTION REQUIRED! Your Account is **extremely past due** and will be written off as a bad debt SOON. To avoid this, you must pay the Minimum payment amount shown on this statement at least 4 days prior to the end of the month in which this statement closed. You can find the Statement closing date in the Summary of account activity on page 1 of this statement. If you are not able to pay the Minimum payment amount, we may still be able to assist you. Call us immediately at 1-855-617-8089 (TDD/TTY 1-888-819-1918) to discuss your payment options. If written off, the bad debt will be reported to the three major credit bureaus and our Recovery team will determine the appropriate steps, as permitted and available under applicable law, to protect our interests.

IMPORTANT INFORMATION ABOUT LATE FEE CREDITS

We may occasionally provide a credit for the amount, part or all, of a late fee charged to your account. If we do, we will charge a fee of up to \$40.00 for any subsequent late payment. In addition, we may reverse the credit and repost the charge to your account if you fail to make the minimum payment due on or before the due date in the next billing period.



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